

FEDERAL MARITIME COMMISSION

NIELSEN & BAINBRIDGE, LLC, Complainant

v.

DOCKET NO. 25-02

**OCEAN NETWORK EXPRESS PTE. LTD.;
ORIENT OVERSEAS CONTAINER LINE
LIMITED; OOCL (EUROPE) LIMITED;
EVERGREEN LINE JOINT SERVICE
AGREEMENT (FMC AGREEMENT NO.
011982); EVERGREEN MARINE
CORPORATION (TAIWAN) LTD.;
EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SPA; EVERGREEN
MARINE (HONG KONG) LTD.; EVERGREEN
MARINE (SINGAPORE) PTE. LTD.; AND
YANG MING MARINE TRANSPORT
CORPORATION, Respondents**

JOINT MOTION FOR EXTENSION OF TIME

Respondent Ocean Network Express PTE. LTD. (“ONE”), by counsel, and Complainant Nielsen & Bainbridge, LLC’s (“NBG”) (together “the Parties”) hereby jointly move for additional time and for a briefing schedule to allow ONE to file certain motions and responsive pleadings herein. ONE’s responsive pleadings are currently due not later than Monday, February 3, 2025. Respondent ONE and Complainant NBG request, with the consent of all parties, that the time within which ONE may file its responsive pleadings be extended to February 17, 2025.

ONE intends to file on or before February 3, 2025, a motion to sever and for a more definite statement in this case, largely adopting the rationale and joining the motion previously filed by Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively “OOCL”) in this case (served January 23, 2025).

To promote efficiency for the Parties and to promote judicial economy by allowing consideration of the severance and sufficiency issues at once, it is further requested that NBG be

allowed until February 13, 2025, to file any opposition it may have to the aforementioned motions by OOCL and ONE, respectively. In the event the motions for more definite statements are granted in whole or in part, the Parties would thereafter file responsive pleadings according to the rules.

Counsel for Respondents OOCL and Evergreen were consulted in advance of the filing of this motion and consent to the relief requested herein.

For the foregoing reasons, the moving Parties jointly move, with the consent of OOCL and Evergreen, for entry of an order allowing an extension of the time within which ONE may file its responsive pleadings to February 17, 2025, and that NBG be allowed until February 13, 2025, to file any opposition it may have to the aforementioned motions to sever and for a more definitive statement filed by OOCL and ONE.

Dated: February 1, 2025

**OCEAN NETWORK EXPRESS PTE.
LTD.**

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CERTIFICATE OF SERVICE

I hereby certify in accordance with 46 CFR Part 502 that a true and correct copy of the foregoing was served by email on all counsel of record on this date, February 1, 2025.

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and OOCL (Europe) Limited:**

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